

**DEPARTMENT OF VETERANS AFFAIRS**

**Justification and Approval (J&A)  
For  
Other Than Full and Open Competition (>SAT)**

**Acquisition Plan Action ID: 36C24E-25-AP-0263**

**1. Contracting Activity:**

Department of Veterans Affairs  
Regional Procurement Office (RPO) – East  
323 North Shore Drive, Suite 500  
Pittsburgh, PA 15212

**Requesting Activity:**

Department of Veterans Affairs  
VA Puget Sound Health Care System  
Seattle Epidemiologic Research and Information Center (ERIC)  
1660 S Columbian Way S-152-ERIC  
Seattle, WA 98108

**Purchase Request # 663-25-2-5147-0000** (placeholder until funding allows 2237 submission)

**2. Nature and/or Description of the Action Being Processed:**

The VA Puget Sound Healthcare System intends to negotiate on a sole source basis a new firm fixed price Indefinite Delivery Indefinite Quantity (IDIQ) contract with its academic affiliate, the University of Washington (UW) to provide data analyst support to execute data cleaning, analyses, summarization, interpretation, and other activities in support of research analyses using epidemiologic research data from VA-supported epidemiologic research projects conducted by the Seattle ERIC. This acquisition is a continuation of services for contract 36C24E19D0031 with the University of Washington.

**3. Description of Supplies/Services Required to Meet the Agency's Needs:**

To achieve the mission of the ERIC research office, the VA Puget Sound Healthcare System requires data analyst(s) staff from UW to support functions to organize analyzed data for presentation and publication and summarize findings in tables or figures for inclusion in progress reports and published materials such as abstracts and manuscripts. This support is required to help to expedite data cleaning, analyses, and interpretation for various epidemiologic research projects conducted by the ERIC. The analytic services will provide higher quality study findings and enable projects to meet strict timelines. The following tasks are functions to be performed by the data analyst:

- Task 1: Identify files for analysis
- Task 2: Conduct analyses
- Task 3: Organize and summarize data
- Task 4: Participate in meetings
- Task 5: Participate in study communications and operations

Title 38 U.S.C. 8153 allows for sole source awards related to research with VA academic affiliates. In this case, UW is the primary academic affiliate of the VA Puget Sound Healthcare System.

The estimated value for the total five (5) year base period is \$1,498,316.22 with a period of performance from 03/16/2025 - 03/15/2030.

The pricing broken down per year:

Year 1 - (03/16/2025 - 03/15/2026): \$253,244.70

Year 2 - (03/16/2026 - 03/15/2027): \$274,486.50

Year 3 - (03/16/2027 - 03/15/2028): \$297,607.50

Year 4 - (03/16/2028 - 03/15/2029): \$322,780.86

Year 5 - (03/16/2029 - 03/15/2030): \$350,196.66

**4. Statutory Authority Permitting Other than Full and Open Competition:**

- ( ) (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
- ( ) (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
- ( ) (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
- ( ) (4) International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
- (X) (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
- ( ) (6) National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;
- ( ) (7) Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

**5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):**

The University of Washington is the only local institution that has a Doctorial Epidemiology Program. The high level of specialized research involved, requires an ongoing collaboration with UW to provide top quality study analysis, which should translate into providing veterans with the best possible care. Statute 38 U.S.C. 8153(a)(3)(A) is applicable for the following reasons:

"If the healthcare resource required is a commercial service, the use of medical equipment or space, or research, and is to be acquired from an institution affiliated with the Department in accordance with section 7302 of this title, including medical practice groups and other entities associated with affiliated institutions, blood banks, organ banks, or research centers, the Secretary may make arrangements for acquisition of the resource without regard to any law or regulation (including any Executive order, circular, or other administrative policy) that would otherwise require the use of competitive procedure for acquiring the resource."

This is a continuation of the current contract that provides data analysts to execute data cleaning, analyses, summarization, interpretation, and other activities in support of research analyses using epidemiologic research data from VA-supported research projects conducted by the Seattle ERIC. The University of Washington's data analysts have the expertise and knowledge of the data and analysis methodology. The experience they bring is highly

specialized and critical to facilitate the deliverable of organizing analyzed data for presentation and publication, such as abstracts and manuscripts. The University's data analysts have the required knowledge and specialized skills from the prior contract that is critical for on-going studies. Further, the contracted work is a critical component of larger research projects where timely publication of the findings is in the best interest of Veterans, their families, and the general population. Hiring data analysts from a different company would cause unacceptable delays in completing the various stages of the research projects.

The University of Washington is the only vendor capable of providing the supplies and services described in Section III above without the Veteran's Health Administration experiencing unacceptable delays in fulfilling its requirements. Because of the high level of specialized research involved, the ongoing collaboration with UW is vital to ensure consistency of research data and the timely publication of the scientific research.

Accordingly, the University of Washington is the only entity capable of providing the supplies and services described in Section III above without the Veteran's Health Administration experiencing substantial duplication of cost that could not be expected to be recovered through competition and unacceptable delays in fulfilling its requirements.

Because of the high level of specialized research involved, the ongoing collaboration with UW is vital to ensure consistency of research data and the timely publication of the scientific research.

**6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:**

Use of 38 U.S.C. 8153 does not require competition when the requirement is for research services from an academic affiliate of the Veterans Health Administration. The University of Washington's current academic affiliation has been verified by the contracting officer (CO).

Acquisition history of the previous contract was reviewed; this is a continuation of services for contract 36C24E19D0031. Knowledgeable individuals in VA Research Leadership and VA Research Investigators were questioned about sources where the needed data analysis skills and knowledge could be obtained.

A sources sought notice was not issued for the current contract per statute 38 U.S.C. 8153(a)(3)(A):

"If the health-care resource required is a commercial service, the use of medical equipment or space, or research, and is to be acquired from an institution affiliated with the Department in accordance with [section 7302](#) of this title, including medical practice groups and other entities associated with affiliated institutions, blood banks, organ banks, or research centers, the Secretary may make arrangements for acquisition of the resource without regard to any law or regulation (including any Executive order, circular, or other administrative policy) that would otherwise require the use of competitive procedures for acquiring the resource."

**7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:**

The Contracting Officer will determine fair and reasonable pricing prior to award, but anticipates the price noted above to be fair and reasonable. These prices have already been evaluated by the National Institutes of Health (NIH) and are considered reasonable as proven by the knowledge that these same services are provided in support of NIH funded research on a regular basis. As part of the Department of Health and Human Services, charges for the support of NIH funded research have been evaluated by the Division of Cost Allocation (DCA), which process proposals from various universities across the country including the University of Washington.

The University of Washington is a not-for-profit organization affiliated with the VA. Previous contracts have demonstrated that the anticipated price to the government will be fair and reasonable. The established pricing is published within the University website and the Contractor salaries will be compared to similar salaries located in the Seattle area on sites to include NIH Grants & Funding, Bureau of Labor Statistics, Indeed.com, and Payscale.com. The VA will pay the same rates as the University of Washington staff. The Contracting Officer anticipates the price noted in #3 above to be fair and reasonable; however, price negotiations may be conducted if the CO determines this is necessary.

**8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:**

A search was conducted in the VA's VIP database using NAICS code 541990, PSC code AN41, and keywords "Research Data Analysis", which resulted in one (1) VOSB and one (1) SDOSB available. The two vendors do not have the critical research knowledge of the data or the past experience that was conducted from the prior contract and critical for these studies. A search was also conducted in the Small Business Administration Dynamic Small Business Search (SBA DSBS) using NAICS code 541990 with keywords "Research Data Analysis", which resulted in no small businesses available for this requirement.

This is a collaborative research study with the University of Washington(UW), an affiliated practice group with the VA Puget Sound Healthcare System, no other vendors can be considered. This study involves the University of Washington's uniquely qualified data analyst(s) to execute data cleaning, analyses, summarization, interpretation, and other activities in support of research analyses using epidemiologic research data from VA-supported epidemiologic research projects conducted by the Seattle Epidemiologic Research and Information Center (ERIC).

UW is a key partner in collaborative research, which is critical for this study. UW has the ability to provide uniquely qualified research data analyst to conduct univariate and multivariate analyses and select the best methods and tools to conduct the analyses, develop a final analysis plan, and execute it in the VA computing environment.

38 U.S.C. 8153 allows for sole source awards related to research with VA academic affiliates. In this case, UW is the primary academic affiliate of VA Puget Sound Healthcare System and is the only institution that can provide the data analyst(s) with the prior knowledge and expertise required to meet the analysis findings, peer and non-peer reviewed summaries of the research findings, and contribute to administrative and research

operations of the research studies. The recommendation is to sole source this requirement for unique specialized research data analyst to the University of Washington.

**9. Any Other Facts Supporting the Use of Other than Full and Open Competition:**

In conjunction with VA approved and funded research projects, investigators and supporting staff have been using data analysis resources from the Department of Epidemiology in the School of Public Health at the University of Washington. The University of Washington is the only local vendor that can provide the highly specialized knowledge and data analysis skills required to facilitate the deliverable of organizing analyzed data for presentation and publication, along with summarizing findings in tables or figures for inclusion in progress reports and published materials such as abstracts and manuscripts. The contracted data analyst(s) have developed highly specialized skills not available elsewhere.

**10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:**

University of Washington  
Department of Epidemiology  
3980 15th Ave NE  
Seattle, WA 98195  
POC: Veronica Jones  
Email: epigrant@uw.edu  
Website: Contact Us | Department of Epidemiology

**11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:**

Given the unique nature of this requirement and the collaborative nature of the research work being conducted, services must continue to be met through the sole source provisions of 38 U.S.C. 8153(a)(3)(A) and FAR Subpart 6.302-5.

**12. Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Digitally signed by MARY  
MAY  
Date: 2025.02.05 09:02:01  
-08'00'

Mary Jo May  
Administrative Officer  
Seattle ERIC, CSP

02/05/2025

Date



13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

- a. **Contracting Officer Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

ANN MARIE  
STEWART

Digitally signed by ANN  
MARIE STEWART  
Date: 2025.02.05 12:23:00  
-05'00'

02/05/2025

Ann Marie Stewart  
Contraction Officer  
Regional Procurement Office – East

Date

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.

SETH  
CUSTER

Digitally signed by SETH  
CUSTER  
Date: 2025.02.05  
13:45:17 -05'00'

02/05/2025

Seth Custer  
Division Chief  
Regional Procurement Office – East

Date

- c. **VHA RPO HCA Review and Approval:** I have reviewed the foregoing justification and find it to be complete and accurate to the best of my knowledge and belief and recommend approval (if over \$75 million) or approve (\$750K to \$75 million) for other than full and open competition.

GERALD JACOBS

Digitally signed by GERALD  
JACOBS  
Date: 2025.02.06 13:58:58 -05'00'

Gerald F. Jacobs  
Head of Contracting Activity, RPO-East

Date